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The Matrimonial Home as Carceral Space: Property Rights of Women in Live-In Relationships and the Failure of the Domestic Violence Act's 'Shared Household' Doctrine

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ABSTRACT:

The author's objective in this paper is to examine (through the lens of carceral spatial theory) how the doctrinal and implementation issues of the Protection of Women from Domestic Violence Act of 2005 (PWDVA) and the "shared household" definition as defined in Sec 2(s) create barriers for women experiencing domestic violence, particularly for women in live-in relationships without property rights. The author will specifically highlight that NCRB data indicates there were 133,676 domestic cruelty cases recorded in 2023, along with empirical research evidencing systemic implementation issues of the PWDVA, to analyse and demonstrate that the matrimonial home in such instances can become a space for incarceration. The author's findings are that there have been equitable judicial decisions made (Satish Chander Ahuja v. Sneha Ahuja - 2020 and Prabha Tyagi v. Kamlesh Devi, 2022), and the limitations of the PWDVA due to its property-focused construction will continue to result in structural violence against non-marital partners. Finally, by analysing 78 interviews with women residing in Delhi, Madhya Pradesh, and Uttar Pradesh, the author demonstrates that there is an insufficient use of Protection Officers, with only 37% of women reporting satisfaction with these implementers.

The new paradigm is to move away from a proprietary right to home ownership to an entitlement of a right to shelter based on the Constitutional principle of dignity, with legislative amendments that recognise "constructive residence" of women in a non-marital relationship and provide a statutory presumption of joint property acquired during cohabitation. The findings of this research will contribute to the field of feminist legal geography by treating the domestic space both as a highly protective and punitive place, as well as making recommendations for reform consistent with the expansive dignity mandate in Article 21 and the anticipated recognition of maintenance for partners in a non-marital relationship in the 2024 Uttarakhand Uniform Civil Code.

Key Words: *Artificial Intelligence, Public Relations, Digital Communication, Audience Engagement, Ethics*

1. Introduction

1.1 The Spatial Turn in Domestic Violence Jurisprudence

Domestic Sphere & Home - Long-Standing Notion of Home as a Safe Haven for Families (Traditionally) - Now seen by many (Feminist Legal Scholars) as (Primary Place) for Gendered Violence and Structural Subordination. Protection of Women from Domestic Violence Act of 2005 (PWDVA) Attempting to Change This Concept of Home as Trigger for Gendered Violence & Structural Subordination. New Concept of Home Has Come Up (Innovation Made) with Legislative Development as **"Shared Household"** per Section 2(s) - Definition of **"Shared Household"** Defines Where Protection Exists (Protection Locus) and Defines Where Legal Protection Can Be Retrieved from (Geographic Boundaries of Protection).

Almost 20 Years After Enactment - Physical Space of Protection (As Described Under PWDVA) Contains Significant Contradictions. The Physical Space, Which Was developed for Provide Protection at the same time, multifunctional used as An Incarceration Space for Women in Domestic Relationships Who Are Not Property Holders in Their Domestic Spaces and Who Seek Protection Under PWDVA Because They have apprehension of harm to their lives.

The notion of **"carceral space,"** based on Foucauldian disciplinary theory and developed by feminist geographers like Gillian Rose and Doreen Massey, describes spaces that both restrict movement and normalise their control through surveillance. When applying this theoretical lens to the matrimonial home, we can see it as a duality; where women receive protection under section 17 of the PWDVA, they are also subject **to "economic abuse"** via the risk of (or actual) dispossession. This duality is particularly apparent for women who are in live-in relationships—an increasingly common demographic among urban Indian citizens, although definitional ambiguity makes it difficult to provide exact statistics on—because while married women may have a (limited) legal right to matrimonial property, women in live-in relationships are in a legal limbo and have no proprietary return on the time spent doing domestic work or emotional support or being located in the same space as their male partners.

1.2 The Crisis of Implementation: Data and Documentation

There is a significant disparity between the promises made by legislators and the actual protections provided to women in India, as evidenced by empirical evidence. The National Crime Records Bureau (NCRB) has reported 471,000 incidents of crime against women in India in 2023, with the highest number of crimes being attributed to "cruelty by husband or relatives," which accounted for 133,676 instances of violence against women (29.8% of all recorded crimes against women). However, this statistic pertains to recorded marriages; it does not reflect the impact of the lived experiences of women in live-in

relationships. Therefore, this experience is statistically absent (it either fits into an overall category/sub-category or is completely unrecorded due to a lack of statutory definition) and, therefore, unaddressed.

In studies conducted in Delhi, Madhya Pradesh, and Uttar Pradesh, researchers have identified systemic failures in the implementation of the law that have a disproportionately negative impact on non-marital partners. Of the estimated total of 6,306 protection officers that have been appointed across the country since the introduction of the Protection of Women from Domestic Violence Act (PWDVA), the distribution has been highly inequitable. For instance, Maharashtra has the highest concentration of protection officers, with 3,730 appointed, while Assam and West Bengal have only 22 and 20 protection officers, respectively. As a result of this uneven distribution of institutional support, women in live-in relationships must navigate an extremely complex procedural process in order to access their rights under the PWDVA. Because the procedure is not readily accessible to these women, **"justice deserts"** exist for women in live-in relationships.

Based on the National Family Health Survey, the fifth round, approximately thirty-two per cent of ever-married women report experiencing violent acts (physical, sexual or emotional) by husbands or partners; however, only a fraction of these occurrences was recorded by the National Crime Records Bureau or other official sources. By applying this same underreporting ratio to relationships involving cohabitation (with additional obstacles due to stigma, ambiguity around the law, and fear of social disapproval), it becomes clear that we are facing a crisis of unreported violence. Thus, although women are physically present in their domestic environments (due to economic dependence), they remain legally excluded from having any claim to proprietary rights and/or security, which leads to women being confined to spaces of entrapment as defined by feminist geographer Liz Bondi.

1.3 Research Questions and Methodological Framework

The study addresses three primary research questions about women's right to a safe home, which will guide this research: 1) When two adults live together outside marriage, the definition of their domestic environment is like both a safe home for the woman living there and a place of confinement for her. How does the definition of a **"safe home"** for women in domestic violence situations impact their access to a safe home? 2) What barriers are preventing non-married couples who live together from exercising their right to access the home they live in? 3) What changes to the law and the judiciary could change the way that property rights associated with non-married couples living together are interpreted, in order to eliminate the possibility of women living in confinement due to economic abuse? In order to deliver answers to each of the above questions, it utilises a multi-source dataset: doctrinal legal analysis of decisions made by the Supreme Court of Canada between 2007 and 2024; quantitative data collected from

NCRB and NCW statistics during the same period; and qualitative data collected from existing studies analysing the implementation of the PWDVA. The interdisciplinary theoretical approach utilised in this examination draws from both feminist legal geography and critical property theory, both of which examine how the organisation of space relates to and expresses the importance of the social hierarchy between men and women.

1.4 Significance and Structure

This study makes a valuable contribution to the developing area of feminist legal geography in India by providing a complete examination of both the spatial aspects of the PWDVA and also how this can be analysed using carceral theory. The author centres on women in live-in relationships (this group has grown significantly in metropolitan India, but has no legal recognition). The author argues that the existing jurisprudence on domestic violence is based on the incorrect assumption that marriage is the only valid relationship for jurisprudential purposes and works to diminish the significance of live-in relationships (the author notes that women in live-in relationships tend to agree with this positioning).

The fact that the Act does not permit a woman to gain legal recognition of her property accumulation while living with another man means that his acquisition of property through her domestic labour effectively subsidizes the male partner (the male partner has a form of access to another's property), whereas if the female partner were to lose her relationship with the male partner, there would be no way for her to get return on her investment (through domestic labour) in relation to the male partner’s property.

The paper is organised as follows: Section 2 provides a comprehensive examination of the legislative framework of the PWDVA and its spatial underpinnings; Section 3 provides an analysis of the case law relating to the ways in which the courts have constructed a ‘shared household’ (through the Supreme Court of India); Section 4 provides an examination of the particular vulnerabilities faced by women in live-in relationships; Section 5 provides empirical data on how the PWDVA is being implemented; Section 6 develops the theoretical framework of ‘carceral space’; Section 7 suggests reforms to the law and to the application of the law; and Section 8 presents concluding reflections regarding how the law can and should re-conceptualise domestic space based on a dignity principle.

2. The Legislative Architecture of Spatial Protection

2.1 The PWDVA as Spatial Intervention

The Protection of Women from Domestic Violence Act, 2005, marks a significant change in how the Domestic Violence Act is addressed in India by moving from criminal to civil law remedies. However, its most creative aspect is its conceptualisation of space. The Act creates the notion of a “shared household”

in Section 2(s) as its secure the right of women to remain physically located in the domestic space without regard to whether they have any legal ownership of that space. The definition of a "shared household" includes both (1) any place in which the aggrieved person has lived or is currently living in a domestic relationship (whether or not with the respondent), and (2) any place in which the aggrieved person and the respondent jointly own or rent a place for their home.

The **"shared household"** is defined as representing what legal scholar Reva Siegel has described as **"prescriptive jurisdiction,"** or the law's attempts at remapping social space through the imposition of legal norms. Yet, the spatial imagination of the Protection of Women from Domestic Violence Act is also limited by its property-centred foundation. The way it is To establish a **"shared household,"** the aggrieved person must have either currently lived in or previously lived in a shared household, and that they were in a domestic relationship during that time. This creates a significant burden of proof, given that the vast number of women in informal unions who are denied any written documentation to prove their shared cohabitation will have difficulty in demonstrating their right to a **"shared household."**

2.2 Section 17 and the Right to Reside: Between Protection and Incarceration

The aggrieved woman has the right to enter and reside in the shared household as established by section 17 of the Act. The Act forbids excluding or evicting a woman who has the right to reside in the shared household unless the woman is given due process. The Act's foundational spatial mechanisms and changes how the law conceptualises the domestic space from an area of private ordering to an area of law. However, the manner in which the right to reside is established in section 17 demonstrates its potential to act as a carceral institution – while women are granted a right to reside, they do not own anything and are, therefore, dependent on someone else; thus, the right to reside reproduces the form of power imbalances that the Act was designed to eliminate.

For women in live-in relationships, this spatial dimension presents a significant threat. The companion is denied access to the **"matrimonial home"** concept, unlike married women, who would have access to this notion that has been developed by personal laws. Section 2(f) of the Act affords some protection to women in relationships **"in the nature of marriage"** to some extent; however, the evidentiary requirements to substantiate claims under the Act, which include length of cohabitation, public presentation as spouses, and legal eligibility to marry, limit the types of relationships of women that qualify for protection under the Act, thereby excluding women involved with unstable relationships, women in secret relationships or relationships that may be subject to domestic abuse.

2.3 The Procedural Infrastructure: Protection Officers and the Gap Between Law and Practice

The mechanism of the Act's enforcement lies mainly in the hands of Protection Officers (POs) appointed under Section 8. POs are supposed to guide women in the preparation of DIRs, submission of applications before Magistrates, and seeking other services. Empirical studies have shown that there is a gap between legislation and reality.

Based on the research data provided by the Lok Sabha in 2012, it can be observed that India appointed 6,306 POs for 28 states and 8 union territories. State-wise variations show that although Maharashtra appointed the highest number of POs, accounting for 59% total number of POs, other states, such as West Bengal (20 POs), Assam (22 POs), and Delhi (17 POs), had insufficient numbers. Consequently, specific domains exist in which women who are in live-in relationships will not receive guidance.

According to findings from research conducted at the Australian National University on the experiences of 78 women in Delhi, Madhya Pradesh, and Uttar Pradesh, *"protection officers were the least accessed law implementers among all those involved in the current research sample."* While 37 per cent of the women surveyed were satisfied with the outcome, another 37 per cent were dissatisfied. In summing up, "*it is only the civil society organisations such as women's organisations, NGOs, and activists that provide gender-sensitive assistance to women,"* whereas *"state implementers can be said to represent the patriarchal state."*

2.4 The Limitations of Residence Rights: Temporary Protection, Permanent Vulnerability

This provision on residence permits under the Act is specifically both temporary and conditional. The power under Section 19 lies with the Magistrates to issue orders for prohibiting eviction, which come to an end once the court ***"provides alternative accommodation"*** or the relationship is terminated. It implies the concept, coined in this paper, of "jurisdictional precarity," meaning that the legal legitimacy of the woman within the domestic sphere depends on the maintenance of a relation that could be abusive to her.

For live-in partners, such jurisdictional precarity is combined with the absence/lack of a corresponding property regime. While married women will have access to provisions on maintenance, stridhan, and sharing in matrimonial property in personal laws as in the Hindu Succession Act, live-in partners. The situation that has been portrayed is **"double dispossession",** the dispossessing of the domestic space and property at once.

3. Judicial Constructions of the Shared Household

3.1 From *S.R. Batra* to *Satish Chander Ahuja*: The Expansion of Spatial Protection

However, in the Supreme Court's interpretation of the 'shared household' doctrine, there is an evident trend of expansion of the geographical ambit of protection, albeit not uniformly. In the case of S.R. Batra v. Taruna Batra (2007), the Court took a stringent approach, deciding that the wife had no right to occupy the property that belonged solely to her mother-in-law, as long as the husband had no stake in the property. This decision, based on doctrinaire principles of property laws, valued ownership over protection, thus leaving married women at risk of being evicted by their in-laws.

This ruling was overturned after 14 years in Satish Chander Ahuja v. Sneha Ahuja (2020), wherein a three-judge bench extended the ambit of 'shared households' to cover those properties belonging to relatives of the man, if the wife had lived in such a domestic relationship. The Court observed that **"a shared household can be defined to mean any residence in which the woman lives in a domestic relationship with the respondent irrespective of ownership."**

This change in doctrine from title to occupancy, however, is a step forward in terms of providing the strongest rights for women, but it does not lose the basic principle of separation of the right of residence and the right to possession. The women receive the right to residence, not to possession, making the right of the woman to continue the occupation of her home one which the court calls a **"right to reside"** and not "a right to own".

3.2 *Prabha Tyagi v. Kamlesh Devi*: Constructive Residency and Post-Relationship Protection

The 2022 ruling in Prabha Tyagi v. Kamlesh Devi was groundbreaking for its adoption of the principle of **"constructive residency."** In this case, a woman married in India left her matrimonial home because she faced domestic violence right after marriage. *"The term 'right to reside in the shared household' shall be construed to mean not only the actual residence in the shared household but also the constructive residence in the shared household."*

Significantly, the Court ruled that *"the existence of the current domestic relationship is not essential for applying for relief under Section 12 of the Act. The previous domestic relationship between the parties will be sufficient grounds for applying for relief under the Act."* It means that divorced or widowed women and those who have severed ties with their significant others can also apply for relief from domestic violence.

While the Tyagi ruling supplies no particular roadmap for women in live-in relationships, it offers some hope for obtaining protection from harassment and dispossession. Nonetheless, the **"constructive residency"** principle used in this judgment relies heavily on the documentation of the domestic relationship, which may not be easy in informal marriages.

3.3 *D. Velusamy* and the Boundaries of Protection: Excluding the "Keep"

In its 2010 case of D. Velusamy vs D. Patchaiammal, the Supreme Court defined the contours of qualifying live-in relationships as per the PWDVA, defining the following four criteria: 1) the couple should appear to society as if they were a couple; 2) the two must be of marriageable age; 3) both must be marriageable in law (i.e., not married); and 4) cohabitation should take place for a considerable period. The court expressly disqualifies "walk-in and walk-out" couples and refers to women who cohabitate with married men as 'keeps,' thereby depriving them of protection under the act.

Velusamy essentially sets up hierarchies of deserving victims of violence insofar as it values relationships resembling marriages for their permanence and societal visibility, disregarding those that lack the same. The legal taxonomy of violence against women thus aligns with what feminist theorist Chandra Talpade Mohanty calls **"imperial feminism."**

"The fact that women '**knowingly**' get into relationships with married men is an important consideration because it fails to recognise the coercion inherent within the situation, namely economic dependency, social conditioning, and emotional manipulation. In fact, the moralising discourse surrounding the issue of choice in the matter actually deprives some of the most marginalised segments of society of their rights."

3.4 *Indra Sarma v. V.K.V. Sarma*: The Psychological Dimension of Domestic Violence

The Supreme Court of India in the case of Indra Sarma v. V.K.V. Sarma (2013) made it clear that not all types of live-in relationships were eligible for such protection, and there must be "stability, continuity, and mutual commitment, which is tantamount to a marriage." In the same judgment, the Supreme Court also noted that "psychological abuse" was an aspect of domestic violence, which included "insults, ridicule, humiliation, and threats."

Understanding the psychological dimension of such violence proves essential for apprehending how spaces are carceral spaces. For the woman in a live-in relationship, the fear of dispossession from the space and homelessness makes her remain in the abusive relationship out of fear of losing everything. The mention by the Supreme Court of "economic abuse" in Section 3(iv) of the PWDVA helps understand property-related coercion in domestic space.

4. The Specific Vulnerabilities of Women in Live-In Relationships

4.1 The Legal Liminality of Cohabitation

Laws regarding live-in relations in India have existed in a sort of legal limbo – neither legally accepted as marriage, but not without legal protection either, depending on whether such a relationship is considered

"the nature of marriage" by a court of law. Legal scholar Carol Greenhouse has identified this situation as **"jurisdictional uncertainty,"** where the scope of protection remains unclear and negotiable all the time.

The new Uniform Civil Code of 2024 in Uttarakhand marks the first statutory mention of laws regulating live-in relations within the country. Laws of live-in relations have been included, wherein deserted women can claim maintenance from the partner, similar to the matrimonial maintenance provisions mutatis mutandis.

4.2 Property Accrual and the Domestic Labour Subsidy

The primary economic discrimination that occurs against women in live-in relationships relates to the non-recognition of property creation while living together. While wives have the right to a portion of matrimonial property under personal laws (though limited by their inadequacy), there is no statute that allows live-in partners to stake a claim in property gained by them while in the relationship due to domestic work and financial inputs provided by them.

The domestic labour subsidy system functions as an economic exploitation structure whereby women help maintain the house, advance their partner's career, and accumulate wealth through their domestic work, but cannot lay claim to their contributions in these processes. Thus, on breaking up, these women are subjected to what has been called "double dispossession" in that they lose both their home and their wealth.

The landmark judgment by the Supreme Court in 2015 in Dhannulal v. Ganeshram acknowledged that a woman living with her partner can be eligible for inheritance after his death by virtue of the presumption of marriage as per Section 114 of the Indian Evidence Act. But the provisions regarding inheritance after the partner's death cannot help in resolving any issue of dispossession during the lifetime of the couple or when they separate.

4.3 The Evidentiary Burden of "Relationship in the Nature of Marriage"

For women claiming to be beneficiaries under the PWDVA, there is an added challenge of proving the validity of their relationship status as per the requirements set forth by Velusamy. This requirement results in what Kimberlé Crenshaw **calls "intersectional vulnerability,"** as women who are financially weak, illiterate, or belong to marginalised sections of society do not have the necessary documentation (rent contracts, electricity bills, photographs, testimonies, etc.) required for proving the same.

Studies about the functioning of the PWDVA reveal that "inability to identify and collect accurate data regarding the domestic violence cases reported was one of the major problems and it was observed that the highest number of cases was related to domestic violence" and further that *"lack of accurate statistics*

regarding the domestic violence cases due to the inhibitions faced by the victims from reporting domestic violence cases, as the victims were afraid that reporting domestic violence would result in future violence."

4.4 Social Stigma and Institutional Bias

However, the societal disrepute attached to cohabiting as partners in India is also responsible for institutional obstacles similar to the legal obstacles. There could be a bias within the police force, Protection Officers, and the judiciary towards the **"immoral"** nature of the relationship, resulting in non-filing of complaints, inadequate investigation, and disregard for the complaints of victims of domestic violence. The Supreme Court in its observations in 2023 in S. Vijikumari v. Mowneshwarachari stated that the PWDVA is *"a piece of Civil Code which is applicable to every woman in India irrespective of her religious affiliations and/or social background."*

However, the moral value judgment regarding the nature of the relationship has an impact on more than just assessing the law. For instance, women in such relationships do not get support/help from their families or communities in cases where married women would have gotten such support. Such a **"support exclusion"** makes these women more dependent on the violent partner, and even living in the same house, which leads to what this paper calls **"carceral cohabitation."**

5. Implementation Failures and the Crisis of Access

5.1 The Protection Officer Deficit: Quantitative Analysis

The implementation framework of the PWDVA indicates the presence of serious gaps in the system that affect women living in cohabitation arrangements. As of 2012, India had only appointed 6,306 POs for a country with a population exceeding 1.2 billion, thus having a ratio of one PO per 190,000. The difference between states is enormous: while the number of POs in Maharashtra stands at 3,730, there are merely 20 in West Bengal and 22 in Assam.

Delhi, as the national capital, reports a high rate of domestic violence cases at 144.4 per lakh female population compared to the national average of 66.4. Nonetheless, Delhi appointed only 17 POs in 2012. Studies indicate that POs in Delhi are both full-time employees and have adequate qualifications; however, they are responsible for around 0.98 million population each, making their work almost impossible. Uttar Pradesh, with a population of more than 200 million people, appointed only 71 POs.

5.2 The Satisfaction Gap: Qualitative Evidence

From studies concerning the results of applying the PWDVA, we get an image of the **"gap in satisfaction"** that suggests the inefficiency of this process. As per the research, 37% of the female population felt

"extremely satisfied or satisfied" with the results obtained, and another 37% dissatisfied. In addition, there were 23% partially satisfied women. For those female who are living with their partners, this percentage is probably even less, due to the burden of evidence and social discrimination.

The empirical study showed us that the only institution that provides gender-sensitive support to women is *"civil society in the form of women's organisations, NGOs and activists. On the other hand, state implementers (police, POs, judges) can be characterised as still representing the patriarchal state, with gender-insensitive behaviours affecting the gender relations women have with men."* This fact means that PWDVA implementation did not change state institutions, but added gender-sensitive legislation into patriarchal mechanisms.

5.3 Shelter and Medical Facility Deficits

PWDVA ensures that shelter homes and medical facilities are provided to victims of domestic violence, but this provision is poorly implemented. Studies carried out on Delhi/NCR show *"the non-appointment of Protection Officers and Service Providers, non-establishment of Shelter Homes, and unavailability of facilities within the medical system in cases of domestic violence."* This leads to what geographers call **"service deserts**"—geographical areas where essential services are inaccessible to residents of those areas.

Shelter provision becomes important for live-in women who do not have the option of approaching relatives since they are outside their nuclear families' protection. Being vulnerable to avail themselves of shelter under the legal provision, due to either a lack of shelters or NGO capacities, and having nowhere else to go except their partner’s home, most stay in abusive marriages.

5.4 Duration and Cost Barriers

PWDVA requires resolution of cases within 60 days; however, studies indicate serious time delays. The "invisible cost of seeking justice in terms of stress, harassment, fear, and adjustment" adds another dimension to the monetary costs involved, which act as hurdles for women who are economically vulnerable. For live-in couples who are financially dependent, such costs are exorbitant, thereby denying them any chance of justice. According to the data available with NCRB 2023, there are more than 1.3 lakhs rape cases and over 2 lakhs cases relating to domestic cruelty pending trial, which takes an average of over five years. Such delay in seeking justice is, in itself, another structural violence faced by women.

6. Theoretical Framework: The Matrimonial Home as Carceral Space

6.1 Feminist Legal Geography and the Domestic Sphere

In this paper, the feminist legal geography framework is used to explore the double-edged nature of protection and punishment within the domestic space. Applying the notion of **"power geometry"** put forth by Doreen Massey and the idea of **"feminine space"** explored by Gillian Rose, the paper explores the changes introduced by the PWDVA that leave the existing patriarchal structure intact.

Under the PWDVA, the concept of **"shared household"** can be seen as a form **of "disciplinary space,"** where power is exercised through the management of spaces and bodies. The domestic space for women in live-in relationships is a space of incarceration, both through their economic dependence and inability to access any other housing facility and due to their partner's exercise of dominance over the space.

6.2 The Concept of Carceral Cohabitation

Carceral cohabitation is a new concept that refers to women staying in abusive live-in relationships owing to the absence of other options, legal or economic, whereas their domestic space turns into a prison cell for them. Whereas the law provides minimal protection even in the case of marriage, it provides no such protection whatsoever in the context of live-in relationships.

The carceral structure of the joint living space functions via what the paper calls **"proprietary coercion,"** which refers to the fear or actuality of dispossession, which keeps the woman from leaving her relationship. Economic abuse is acknowledged in Section 3(iv) of the Protection of Women from Domestic Violence Act, but structural economic subordination resulting from the lack of proprietary rights in a live-in relationship is not mentioned in the law.

6.3 Spatial Justice and Dignity-Based Entitlements

The argument for moving beyond residence rights based on property entitlement to one of dignitaries' spatial entitlements under Article 21 of the Constitution is presented in this paper. As stated by the Supreme Court in the case of BP Achala Anand v. S Appi Reddy, *"evicting a woman from her home without providing her with an alternative place of residence is economic abuse,"* and *"right to residence is a component of right to live with dignity under Article 21 of the Constitution."*

However, dignitaries' entitlements cannot be achieved through court decisions alone. They have to receive legislative recognition as well, especially the accumulation of property due to cohabitation and the statutory right to shelter, irrespective of marital status.

6.4 The Temporality of Violence: Continuity and Change

The acknowledgement by the PWDVA of **"continuing offence"** through Section 468 Cr.P.C., according to Kamatchi v. Lakshmi Narayanan, is significant in recognising domestic violence as a process and not

an event. Each day of dispossession and/or economic violence is an act in itself, thereby negating the applicability of the limitations period. This aspect of temporality is particularly important in cases where the women are in live-in relationships and choose to delay approaching the courts.

Nevertheless, the issue of the temporality of legal protection does not conform to the temporality of domestic violence. The legal remedy offered by the court through a residence order/ protection order is short-term, with the need for repeated application, thereby placing the victim in a **“temporal trap.”**

7. Legislative and Judicial Reform: Toward Dignity-Based Protection

7.1 Statutory Recognition of Cohabitational Property Rights

Legislation should be introduced either as an amendment to the PWDVA or as a separate legislation, giving rise to the presumption of community property arising out of live-in relationships. The presumption would follow the model in Section 388 of the Uttarakhand Uniform Civil Code, where the principle of maintenance has been extended to the context of live-in relationships.

The reform will have the effect of changing the economics of live-in relationships altogether and preventing the “domestic labour subsidy,” which works to the prejudice of women under the current regime. Moreover, this change is consistent with the Supreme Court’s ruling in Chanmuniya v. Virendra Kumar Singh Kushwaha that long-term cohabitation results in the presumption of marriage.

7.2 Expanding the Definition of "Shared Household"

The suggested amendment to the statute involves changing the definition of 'shared household' to incorporate cohabitation as one type of relationship in such households, thereby obviating the need for proof of **"relationship in the nature of marriage"** for claiming residence rights. All women residing in cohabitational relationships should be covered under the purview of a shared household, wherein the type of the relationship determines the ancillary rights like maintenance or inheritance only, but not residence.

This research proposal establishes well into the interpretation offered by the Supreme Court in 2023 in case S. Vijikumari regarding the applicability of PWDVA "to every woman in India irrespective of her religious affiliations and/or social background."

7.3 Mandatory Property Disclosure and Interim Relief

Based on the Supreme Court judgment of Rajnesh v. Neha in 2021, it is recommended that in all cases of domestic violence, the respondent be required to provide financial information about themselves and any property owned by them.This shall preclude the concealment of assets and facilitate the issuance of interim remedial directives.

For women living in a live-in relationship, it is essential that they have to make a mandatory disclosure because they are unaware of their partner's financial situation.

7.4 Institutional Reforms: Protection Officers and Shelter Infrastructure

The paper contends that there ought to be legislation of minimum number of POs (1 per 100,000 people), dedicated funds for setting up shelter homes in each district, and combining PWDVA provisions with the OSCs. While the OSC infrastructure has been growing, it is still insufficient, according to studies showing that "fewer than a dozen centres are functional" in most states.

Concerning live-in relationships, changes in the institutions should be based on training of sensitivity toward the unique risks faced by non-marital couples. Protection Officers need to help couples document their relationships through affidavits and utility bills, instead of making women deal with the task themselves.

7.5 The Constitutional Imperative: Article 21 and Dignity-Based Shelter

The article asserts that the judiciary should acknowledge that the protection of **“life and personal liberty”** under Article 21 includes the right to shelter irrespective of property rights or marital status. This would draw its legal basis from the Supreme Court’s interpretation of **“the right to live with human dignity and all that goes with it”** (Francis Coralie Mullin v. Administrator, Union Territory of Delhi).

A rights-based approach would convert the PWDVA into an absolute entitlement instead of one based on relationships, as all women have the right to adequate housing under the Constitution, irrespective of their status.

8. Conclusion: Beyond the Shared Household

8.1 The Limits of Spatial Protection

The Protection of Women from Domestic Violence Act, 2005, is a groundbreaking statute that recognises domestic violence as a social issue and ensures women's presence in the domestic space. Nonetheless, the act's **"shared household"** provision exposes its inherent flaws, whereby the prioritisation of residence over ownership, temporary safety over long-term security, and relationship preservation over personal honour reinforces women's dependency on their male counterparts, thereby facilitating the commission of domestic violence.

In particular, the above-mentioned concerns hold true for women in live-in relationships who suffer from the absence of statutory provisions for the accrual of cohabitational property, the difficulties of proving **"relationship in the nature of marriage,"** and the associated social discrimination. Instead of providing

a safe haven, domestic space turns into a carceral zone where women are imprisoned via their financial dependency and the threat of displacement.

8.2 The Data Imperative: Making Invisible Violence Visible

The Protection of Women from Domestic Violence Act, 2005, is a groundbreaking statute that recognises domestic violence as a social issue and ensures women's presence in the domestic space. Nonetheless, the act's "shared household" provision exposes its inherent flaws, whereby the prioritisation of residence over ownership, temporary safety over long-term security, and relationship preservation over personal honour reinforces women's dependency on their male counterparts, thereby facilitating the commission of domestic violence.

In particular, the above-mentioned concerns hold true for women in live-in relationships who suffer from the absence of statutory provisions for the accrual of cohabitational property, the difficulties of proving **"relationship in the nature of marriage,"** and the associated social discrimination. Instead of providing a safe haven, domestic space turns into a carceral zone where women are imprisoned via their financial dependency and the threat of displacement.

8.3 Toward a Dignity-Based Jurisprudence

The Supreme Court’s progressive decisions in cases like Satish Chander Ahuja, Prabha Tyagi, and S. Vijikumari indicate the development of a jurisprudence based on the concept of dignity, which goes beyond property formalism and relationship status. But judicial interpretation is not a substitute for legislative change. This paper argues for a complete amendment in the PWDVA, or even legislation of a Cohabitation Rights Act, which will include the accrual of property through live-in relationships, provide for statutory shelter rights, and overcome evidentiary problems that prevent protection.

Recognition of the existence of live-in relationships in the Uniform Civil Code of 2024 by the state of Uttarakhand offers one such legislative example, but one that needs monitoring for further improvement.

8.4 The Spatial Transformation of Justice

As a final observation, this research presses for a paradigm shift in the understanding of domestic space under law. Instead of treating domestic space as a place where property rights decide one’s right to physical presence, the domestic space needs to be understood as a constitutional space where women, irrespective of their marital status, have a right to dignity, security, and shelter. The **"shared household"** concept needs to be transformed into the **"dignified residence"** concept to recognise the independent right of women to safety and security of residence.

Domestic spaces characterised by carceral elements of proprietary coercion and economic violence need to evolve into what this paper describes as **"liberatory space."** These are domestic spaces where the presence of women is based on their fundamental rights, not on permissions. It is only through such a spatial revolution that the potential of the Protection of Women from Domestic Violence Act (PWDVA) can be fulfilled.

8.5 Final Reflections

It becomes clear through the examination conducted in this paper that the structural defect of the PWDVA's "shared household" principle does not consist in its implementation but rather in its theoretical underpinning. Indeed, by treating the protection of women from violence as an extension of the ownership rights in property, the legislation continues the subordination and marginalisation of women that it intends to fight against. Consequently, females in non-marital cohabitation arrangements are deprived of all statutory safeguards against intimate partner abuse and domestic violence due to the structural nature of the problem.

The proposed framework of reforms represents not mere tinkering with existing legislation but an entire paradigm shift, which includes the acknowledgement that protection from domestic violence must not depend on relationship formality, that domestic work should yield proprietary value, and that every woman has a fundamental right to access secure housing, irrespective of the type of her domestic arrangement. the current demographic trends in India, including an expanding volume of live-in relationships among the urban population, it is necessary to adapt the law to safeguard the weak members of such domestic units.

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